Tentative Rulings and Resolution Review Hearings
August 3, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.
The access code is 2480 682 3750. There is no attendee ID number, so just follow verbal instructions for prompt.
Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. **Please mute your telephone until your case is called.**
2. **Please do not place the call on hold.**
3. **Minimize all background noise during your call.**
4. **Please identify yourself, each time, prior to speaking with the court.**
5. **Disconnect when the court has completed your case or cases.**
6. **The court prohibits the recording of these proceedings.**

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8:30 a.m. Law and Motion

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BLY, ET AL. VS. MARQUIS CARE AT SHASTA, ET AL.
CASE NUMBER: 25CV-0209458
Tentative Ruling on Motion to Compel Depositions: Plaintiffs Laura Bly, Julie Dowell, and David Eatchell, individually and as successors-in-interest to the Estate of Bettie Eatchel seek an order compelling Defendants to provide dates certain for the depositions of 13 witnesses pursuant to a properly served Notice of Taking Videotaped Depositions and Request for Production of Documents, within 3 days of the Court's order granting this motion. Defendants have filed an untimely Opposition, which the Court exercises its discretion to consider.

Defendants do not dispute that deposition dates and last-known contact information for the 13 noticed deponents have not been provided. Defendants do not oppose entry of an order compelling that information. Defendants request the Court allow Defendants 30 days from the hearing (rather than 3 calendar days) within which to provide dates and contact information. Defendants request that the Court decline to impose any monetary sanctions as the briefing does not request them. Defendants also do not oppose Plaintiff's request that the compelled depositions occur within 30 days of the hearing on this matter.

The Motion is **GRANTED**. Defendants are ordered to provide dates certain for the 13 noticed depositions within 15 days of today's hearing. Objections have been waived. No sanctions are imposed. The depositions are to occur within the next 30 days, unless otherwise agreed by the parties. The proposed order will be modified accordingly.

IN RE COFFMAN
CASE NUMBER: 26PB-0033441
Tentative Ruling on Petition to Approve Minor Compromise: Amy Coffman seeks an order approving the compromise of claim on behalf of her minor son Emmett Cardenas Coffman. California Rules of Court, Rule 7.950 provides that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition provides the required information. The Court is prepared to find that the settlement is in the best interest of the minor, if the voir dire process is completed to the Court's satisfaction.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at the hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Petitioner is required to appear. The Court will not require the appearance of the minor at today's hearing, as he is only five years old.

The Court will voir dire the Petitioner about the terms of the settlement and any other potential sources to increase the settlement amount such as an umbrella policy or other potential sources of insurance. The Court will also inquire as to whether the Petitioner sought independent legal advice. The Court will also inquire as to whether the Petitioner understands that once approved, the settlement is final and binding on the minor. If satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Orders and schedule a hearing for review regarding confirmation of funding the annuity.

COX VS. COUNTY OF SHASTA
CASE NUMBER: 26CV-0210602
Tentative Ruling on Motion to Strike Portions of Plaintiff's Complaint: Plaintiff Alan Cox, a former Deputy County Counsel, alleges causes of action for retaliation in violation of Labor Code section 1102.5, arising out of his refusal to carry out directives from his supervisors, County Counsel Joseph Larmour and Assistant County Counsel Patricia Weber, that he believed would require him to violate the law. Defendant County of Shasta moves to strike paragraphs 13 and 15 through 24 of the Complaint on the grounds that they disclose attorney-client privileged communications and attorney work product concerning the County's handling of two underlying litigation matters. Defendant has filed a related motion to seal the same paragraphs, which is addressed in a separate tentative ruling.

<u>Meet and Confer:</u> Before filing a motion to strike, a party is required to meet and confer in person or on the telephone. CCP § 435.5(a). A motion to strike shall be supported by a declaration stating either that the parties met and conferred or that they were unable to meet and confer. CCP § 435.5(a)(3). The Declaration of Chelsea Avent demonstrates compliance with the meet and confer requirement.

<u>Requests for Judicial Notice</u>: Plaintiff requests the Court take judicial notice of the Complaint, Plaintiff's Government Claim, the Request for Dismissal in Case No. 206370, the Request for Dismissal in Case No. 205955, the Order Approving Final Distribution in Case No. 32536, the Petition for Prior Court Approval to Engage in Litigation in Case No. 32536, the Lis Pendens in Case No. 205955 and the Ex Parte Petition for Final Discharge in Case No. 32536. The request is granted. "A court may take judicial notice of the existence of court records, prior court orders, or official acts of executive agencies, but it cannot take judicial notice of the truth of the matters asserted, factual findings, or hearsay allegations contained within those documents." *Steed v. Department of Consumer Affairs*, 204 Cal. App. 4th 112 (2012), *Licudine v. Cedars-Sinai Medical Center*, 3 Cal. App. 5th 881 (2016).

<u>Merits:</u> A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. (Code Civ. Proc., § 437(a).

Defendant moves to strike paragraphs 13 and 15-24 pursuant to CCP 436 and CRC 3.1322 on the grounds that they contain improper matter. Specifically, Defendant argues that these paragraphs contain attorney-client privileged communications. The attorney-client privilege protects confidential communications made in the course of the professional relationship for the purpose of obtaining or providing legal advice. Evid. Code, §§ 950-954; *Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 733. When the communication is a confidential one between attorney and client, the entire communication, including its recitation or summary of factual material, is privileged. *Id*. at 736. Internal communications among attorneys reflecting legal strategy, mental impressions, and case evaluation are further protected by the attorney work product doctrine. CCP § 2018.030(a).

On the face of the Complaint the paragraphs at issue recount and paraphrase confidential communications among County attorneys concerning the handling of two litigation matters, including internal assessments of litigation strategy, directives concerning case management, and legal advice provided in the course of representing the County. These allegations go beyond identifying the existence of a disagreement between Plaintiff and his supervisors; they disclose the substance of privileged deliberations and attorney work product.

Plaintiff's contention that these allegations are necessary to plead the elements of a Labor Code section 1102.5 claim does not defeat the privilege. Relevance and necessity to a claim do not create an exception to the attorney-client privilege or work product doctrine. Both parties cite *General Dynamics Corp. v. Superior Court* (1994) 7 Cal.4th 1164, 1189. *General Dynamics* recognized that a former in-house attorney may pursue a retaliatory discharge claim but that the cause of action for retaliatory discharge may not result in a breach of the attorney-client privilege.

> "[t]he in-house attorney who publicly exposes the client's secrets will usually find no sanctuary in the courts. Except in those rare instances when disclosure is explicitly permitted or mandated by an ethics code provision or statute, it is never the business of the lawyer to disclose publicly the secrets of the client. In any event, where the elements of a wrongful discharge in violation of fundamental public policy claim cannot, for reasons peculiar to the particular case, be fully established without breaching the attorney-client privilege, the suit must be dismissed in the interest of preserving the privilege. … Indeed, in most wrongful termination suits brought by discharged in-house counsel, whether the attorney-client privilege precludes the plaintiff from recovery will not be resolvable at the demurrer stage. Rather, in the usual case, whether the privilege serves as a bar to the plaintiff's recovery will be litigated and determined in the context of motions for protective orders or to compel further discovery responses, as well as at the time of a motion for summary judgment. … The trial courts can and should apply an array of ad hoc measures from their equitable arsenal designed to permit the attorney plaintiff to attempt to make the necessary proof while protecting from disclosure client confidences subject to the privilege. The use of sealing and protective orders, limited admissibility of evidence, orders restricting the use of testimony in successive proceedings, and, where appropriate, in camera proceedings, are but some of a number of measures that might usefully be explored by the trial courts as circumstances warrant."

General Dynamics Corp. v. Superior Court (1994) 7 Cal.4th 1164, 1190-1191.

Plaintiff has not established that any exception to the privilege applies. The crime-fraud exception under Evidence Code section 956 requires an evidentiary showing that the County sought or obtained legal services to enable or aid an intended or ongoing crime or fraud, with the focus on the client's intent rather than the subjective beliefs of an attorney within the organization. *State Farm Fire & Casualty Co. v. Superior Court* (1997) 54 Cal.App.4th 625, 645. The showing offered here consists of Plaintiff's own characterization of internal directives from his supervisors regarding ongoing litigation as unlawful. Moreover, the Plaintiff's Declaration is extrinsic evidence not properly considered on a motion to strike.

Striking the paragraphs at issue does not require dismissal of Plaintiff's cause of action and does not foreclose Plaintiff from pursuing his claims. Plaintiff remains free to plead the protected activity, his objections, and the retaliation he alleges in terms that do not disclose the substance of privileged attorney communications, and to pursue any need for the underlying privileged material through appropriate procedures, including protective orders, sealing, or in camera review, as contemplated by *General Dynamics*.

The Motion to Strike Portions of Plaintiff's Complaint is **GRANTED**. Paragraphs 13 and 15 through 24 of the Complaint are stricken. Plaintiff is granted leave to amend within 20 days of notice of this order.

COX VS. COUNTY OF SHASTA
CASE NUMBER: 26CV-0210602
Tentative Ruling on Motion to Seal Portions of Plaintiff's Complaint: Plaintiff Alan Cox, a former Deputy County Counsel, alleges causes of action for retaliation in violation of Labor Code section 1102.5, arising out of his refusal to carry out directives from his supervisors, County Counsel Joseph Larmour and Assistant County Counsel Patricia Weber, that he believed would require him to violate the law. Defendant County of Shasta moves to seal paragraphs 13 and 15 through 24 of the Complaint on the grounds that they disclose attorney-client privileged communications and attorney work product concerning the County's handling of two underlying litigation matters. Defendant has filed a related motion to strike the same paragraphs, which is addressed in a separate tentative ruling.

Meet and Confer: Before filing a motion to strike, a party is required to meet and confer in person or on the telephone. CCP § 435.5(a). A motion to strike shall be supported by a declaration stating either that the parties met and conferred or that they were unable to meet and confer. CCP § 435.5(a)(3). The Declaration of Chelsea Avent demonstrates compliance with the meet and confer requirement.

Requests for Judicial Notice: Plaintiff requests the Court take judicial notice of the Complaint, Plaintiff's Government Claim, the Request for Dismissal in Case No. 206370, the Request for Dismissal in Case No. 205955, the Order Approving Final Distribution in Case No. 32536, the Petition for Prior Court Approval to Engage in Litigation in Case No. 32536, the Lis Pendens in Case No. 205955 and the Ex Parte Petition for Final Discharge in Case No. 32536. The request is granted. "A court may take judicial notice of the existence of court records, prior court orders, or official acts of executive agencies, but it cannot take judicial notice of the truth of the matters asserted, factual findings, or hearsay allegations contained within those documents." *Steed v. Department of Consumer Affairs*, 204 Cal. App. 4th 112 (2012), *Licudine v. Cedars-Sinai Medical Center*, 3 Cal. App. 5th 881 (2016).

Merits: Recognizing the public's First Amendment right of access to documents used at trial or as a basis of adjudication and a presumption of openness of substantive court proceedings in ordinary cases, our Supreme Court in *NBC Subsidiary (KNBC–TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, set forth the findings that both the trial and appellate courts must expressly make to seal a record. Courts must find that (1) there is an overriding interest supporting sealing records; (2) there is a substantial probability that the interest will be prejudiced absent sealing; (3) the proposed sealing is narrowly tailored to serve the overriding interest; and (4) there is no less restrictive means of achieving the overriding interest. *Id*. at 1217–1218; *see also* California Rule of Court 2.550(d).

Overriding Interest. The attorney-client privilege and attorney work product doctrine constitute recognized overriding interests. *NBC Subsidiary*, 20 Cal.4th at p. 1222, fn. 46. Paragraphs 13 and 15-24 of the Complaint describe communications between Plaintiff and his supervising attorneys, County Counsel Larmour and Deputy County Counsel Weber, concerning legal strategy and litigation decisions in two matters. Plaintiff does not dispute that these communications arose within the attorney-client relationship. Instead, his Opposition argues that the crime fraud exception to the privilege applies. Plaintiff additionally argues that prior public disclosure waives the privilege.

Probability of Prejudice. A substantial probability of prejudice exists absent sealing. Public disclosure of privileged legal advice and attorney work product would reveal legal strategy and mental impressions of counsel and would chill full and candid communication between public entities and their counsel in ongoing and future matters.

Narrow Tailoring and Least Restrictive Means. The request is limited to paragraphs 13 and 15 through 24; the remainder of the Complaint remains publicly accessible. This is the type of limited sealing contemplated by CRC 2.550(e)(1)(B). A protective order would not provide an adequate alternative, as it governs only the use of information prospectively and does not remove privileged material already contained in a publicly filed pleading. No less restrictive means is available to protect the privileged communications at issue.

Crime Fraud Exception. The Court finds Plaintiff has not made the required prima facie showing under Evidence Code section 956 to invoke the crime-fraud exception. That exception requires evidence that the County sought counsel's assistance to enable or aid the commission of a crime or fraud, with the focus on the client's intent. *State Farm Fire & Casualty Co. v. Superior Court* (1997) 54 Cal.App.4th 625, 645. Plaintiff's Declaration is framed in terms of his belief that certain directives were unlawful. Assertions of fraud and conclusory statements do not satisfy the standard. *Johnson v. Department of Transportation* (2025) 109 Cal.App.5th 917, 942. Additionally, the crime-fraud exception does not extend to attorney work product. *BP Alaska Exploration, Inc. v. Superior Court* (1988) 199 Cal.App.3d 1240, 1262.

Prior Public Disclosure. The Court finds that the County's inclusion of related material in Plaintiff's personnel file, and its production of that file to Plaintiff on his request following his separation from employment, did not constitute disclosure to a third party. Personnel files are independently subject to confidentiality protections (Gov. Code, § 7927.700.), and the disclosure was to Plaintiff himself, not to the public or any third party.

The Motion is **GRANTED**. The Court orders that paragraphs 13 and 15 through 24 of Plaintiff's Complaint be filed under seal. All other portions of the Complaint remain part of the public file.

DUGO VS. MAIUU PARTNERS LLC
CASE NUMBER: 25CV-0208868
An Order to Show Cause Re: Sanctions ("OSC") issued on June 17, 2026, to Plaintiff and Counsel, for failure to timely serve Defendant as required by CRC 3.110(b). No response to the OSC has been filed. However, the Court notes that proper proof of service was filed on June 15, 2026, prior to the issuance of the OSC. The OSC is **DISCHARGED.** Sanctions will not be imposed. This matter is set for review regarding trial setting on **<u>Monday, September 21, 2026 at 9:00 a.m. in Department 64</u>**. Plaintiff is to give notice. No appearances are necessary on today's calendar.

GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.
CASE NUMBER: 25CV-0209491
This matter is on calendar for hearing on Plaintiff's Motion to Compel Deposition of Custodian of Records of Defendant Redding Senior Living LLC dba Hilltop Springs Senior Living. On July 24, 2026, Plaintiff continued hearing on this Motion to Monday, August 24, 2026 at 8:30 a.m. No appearances are necessary on today's calendar.

LAWRENCE VS. KIA AMERICA, INC.
CASE NUMBER: 25CV-0208692
An Order to Show Cause Re: Sanctions ("OSC") issued on June 25, 2026, to Plaintiff and counsel for failure to file a Mandatory Settlement Conference Statement in violation of CRC 3.1380, and failure to appear at the June 15, 2026 Mandatory Settlement Conference. A late response to the OSC has been filed providing a satisfactory explanation for the failure to file a mandatory statement and attend the mandatory settlement conference. The OSC is **DISCHARGED**.

Based on the information provided in Counsel's declaration regarding the OSC, the court has executed the proposed order continuing the jury trial scheduled for August 11, 2026. A mandatory settlement conference is scheduled for **Monday, November 9, 2026 at 1:30 p.m.** and a jury trial is scheduled for **Tuesday, December 8, 2026 at 8:45 a.m.** Plaintiff is to give notice. No appearances are necessary on today's calendar.

IN RE: LEACHMAN
CASE NUMBER: 26CV-0210797
Tentative Ruling on Petition for Change of Name: Petitioner Kayden Lee-Adean Leachman seeks to change his name to Kayden Dean Wampler. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

IN RE: MCCORMICK
CASE NUMBER: 26CV-0210703
Tentative Ruling on Petition for Change of Name: Petitioner Jessican McCormick seeks to change the last name of her minor daughter from Bryd to McCormick. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

PERRY VS. ADVANCED CRISIS SOLUTIONS, INC.
CASE NUMBER: 24CV-0205612
Tentative Ruling on Motions to Compel Depositions: Plaintiff moves pursuant to CCP § 2025.450 for an order compelling the depositions of Defendant Advanced Crisis Solutions, Inc. employees Bailey Tompkins, Kimberly Congdon, and David Lopez. Sanctions of $2,250.00 are requested in the motion regarding Lopez only. The Motions are properly noticed and are unopposed.

CCP 2025.450(a) provides:

> If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410,

> fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

Here, Plaintiff has established service of a deposition notice as to Tompkins, Congdon, and Lopez, respectively. No valid objections under Section 2025.410 were served. Plaintiff has also provided evidence that on the noticed dates for each deposition, which were June 29, July 1, and July 3, 2026, Plaintiff's counsel and a court reporter appeared on zoom for the depositions. Neither defense counsel nor any deponent appeared. Plaintiff is entitled to an order compelling each of the three deponents' attendance and testimony.

Sanctions. Sanctions are mandatory under CCP 2025.450(g)(1). A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiff requests sanctions of $2,250.00 on the Motion to Compel the Appearance of David Lopez for Deposition. This consists of 5 attorney hours at a rate of $450.00. This hourly rate is higher than the prevailing rate for attorneys of similar skill and experience in Shasta County. No evidence has been submitted that competent local counsel could not be retained. Therefore, the Court will award attorney fees at a rate of $400 per hour. Hours will be reduced by 2, because no opposition was filed and no reply brief was needed. Total sanctions are $1,200.00.

Each of the three Motions to Compel Appearance for Deposition of Bailey Tompkins, Kimberly Congdon, and David Lopez are **GRANTED**. Sanctions of $1,200.00 are imposed in favor of Plaintiff Perry against Advanced Crisis Solutions, Inc. No proposed orders were lodged as required by Local Rule 5.17(D). Plaintiff is directed to prepare the orders.

PERRY VS. ADVANCED CRISIS SOLUTIONS, INC.
CASE NUMBER: 24CV-0205612
Tentative Ruling on Motion to Compel Further Responses to Special Interrogatories: Plaintiff seeks further responses to Special Interrogatories, Set Two. The motion is properly noticed and unopposed.

Meet and Confer: Pursuant to Ca. Code of Civ. Pro. section 2030.300(b) a motion to compel further responses must be accompanied by a meet and confer declaration. The Declaration of Noriya Bragg establishes compliance with this requirement.

Merits: The scope of discovery is broad. Any matter that is admissible evidence or appears reasonably calculated to lead to the discovery of admissible evidence is relevant and subject to discovery. CCP § 2017.010. Any doubts as to the relevance should generally be resolved in favor of permitting discovery. *Colonial Life & Acc. Ins. Co. v. Sup. Ct.* (1982) 31 Cal.3d 785, 790. A party propounding interrogatories may move for further responses if the responses are evasive/incomplete or contain unmeritorious objections. CCP § 2030.300(a)(1) & (3).

The interrogatories at issue, numbers 27 and 28, seek the identities of current and former employees who, within the preceding six years, complained of sex or gender-based mistreatment to Plaintiff's supervisor, Kimberly Congdon, or to Ryan Tucker, the decision-maker involved in

Plaintiff's termination. Plaintiff contends the requested information is relevant to her claims for pregnancy discrimination, retaliation, and related causes of action, and that Defendant has failed to provide verified, Code-compliant responses despite extensive meet and confer efforts.

The Court finds the information sought is discoverable. California's discovery statutes are construed liberally, and a party is entitled to discovery of any nonprivileged matter relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. Information concerning other employees who made similar complaints to the same supervisors or decision-makers is relevant to Plaintiff's claims and may lead to admissible evidence regarding discriminatory motive, retaliatory intent, pretext, or a pattern or practice of discrimination.

Defendant has not demonstrated that its objections are meritorious or that its responses are Code-compliant. The record reflects Defendant failed to timely serve responses, thereafter served only unverified responses containing objections, and despite repeated assurances that verified supplemental responses would be forthcoming, failed to provide either verifications or supplemental responses before the filing of this motion. The Court concludes Defendant has not met its burden of justifying its objections or incomplete responses.

<u>Sanctions</u>: Monetary sanctions are mandatory against anyone who makes or opposes a motion to compel further response to Form or Special Interrogatories unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2030.300(d). While Defendant did not provide a substantive opposition, Plaintiffs still had to file the motion in order to obtain discovery. "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." CRC 3.1348(a). Plaintiffs request $2,250 in monetary sanctions which is comprised of five attorney hours at $450 per hour.

A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiffs hourly rate is higher than the prevailing rate for attorneys of similar skill and experience in Shasta County. No evidence has been submitted that competent local counsel could not be retained. Therefore, the Court will award attorney fees at a rate of $400 per hour. Hours will be reduced by 2, because no opposition was filed and no reply brief was needed. Total sanctions are $1,200.00.

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set Two is **GRANTED**. Sanctions of $1,200.00 are imposed in favor of Plaintiff Perry against Advanced Crisis Solutions, Inc. No proposed order was lodged as required by Local Rule 5.17(D). Plaintiff is directed to prepare the order.

PERRY VS. ADVANCED CRISIS SOLUTIONS, INC.
CASE NUMBER: 24CV-0205612
Tentative Ruling on Motion to Compel Further Responses to Requests for Production: Plaintiff Larissa Perry seeks an order compelling Defendant Advanced Crisis Solutions, Inc. to provide complete Code-compliant responses to Plaintiff's Requests for Production of Documents,

Set Two Nos. 65-80 and 85. The Motion is properly noticed and unopposed.

Meet and Confer: Pursuant to Ca. Code of Civ. Pro. section 2031.310(b) a motion to compel further responses must be accompanied by a meet and confer declaration. The Declaration of Noriya Bragg establishes compliance with this requirement.

Merits: The scope of discovery is broad. Any matter that is admissible evidence or appears reasonably calculated to lead to the discovery of admissible evidence is relevant and subject to discovery. CCP § 2017.010. Any doubts as to the relevance should generally be resolved in favor of permitting discovery. *Colonial Life & Acc. Ins. Co. v. Sup. Ct.* (1982) 31 Cal.3d 785, 790. A propounding party may move for an order compelling further responses to requests for production if: 1) the response to a request for production is incomplete; 2) a representation of inability to comply is inadequate, incomplete, or evasive; or 3) an objection to the request is without merit or too general. CCP § 2031.310(a). A motion to compel further responses for production must show "good cause" for the request. CCP § 2031.310(b)(1). "Good cause" can be established by showing the request was made in good faith and the documents sought are relevant to the action. *Associated Brewers Distributing Co. v. Superior Court of Los Angeles County* (1967) 65 Cal.2d 583, 588. Once good cause is established, the burden shifts to the opposing party to justify their objection. *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.

Here, Plaintiff seeks to compel further responses to Plaintiff's Requests for Production of Documents, Set Two Nos. 65-80 and 85. The discovery was served on Defendant on January 29, 2026, and responses were due March 3, 2026. On June 5, 2026, Defendant served unverified responses containing objections and did not provide any responsive documents.

Plaintiff has established good cause to compel further production. The documents sought are reasonably calculated to lead to the discovery of admissible evidence. Defendant has not provided any justification for objections to further production. Plaintiff is entitled to an order compelling further responses.

Sanctions: Monetary sanctions are mandatory against anyone who unsuccessfully makes or opposes a motion to compel further response to a demand unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2031.310(h). While Defendant did not provide a substantive opposition, Plaintiffs still had to file the motion in order to obtain discovery. "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." CRC 3.1348(a). Plaintiffs request $3,600 in monetary sanctions which is comprised of eight attorney hours at $450 per hour.

A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiffs hourly rate is higher than the prevailing rate for attorneys of similar skill and experience in Shasta County. No evidence has been submitted that competent local counsel could not be retained. Therefore, the Court will award attorney fees at a rate of $400 per hour. Hours will be reduced by 3, because no opposition was filed and no reply brief was needed. Total sanctions are $2,250.00.

Plaintiff's Motion to Compel Further Responses to Requests for Production of Documents is **GRANTED**. Sanctions of $2,250.00 are imposed in favor of Plaintiff Perry against Advanced Crisis Solutions, Inc. No proposed order was lodged as required by Local Rule 5.17(D). Plaintiff is directed to prepare the order.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. $52,000.00 USD CASH
CASE NUMBER: 26CV-0209676
Tentative Ruling on Order to Show Cause Re Dismissal: An Order to Show Cause Re: Dismissal ("OSC") issued to Claimant Jared McGinn, in pro per, for failure to timely prosecute. No response to the OSC has been filed. Claimant's Claim Opposing Forfeiture is DISMISSED. This matter is set for review regarding status of default on **Monday, October 5, 2026 at 9:00 a.m. in Department 64**. No appearances are necessary on today's calendar.

WARDLE VS. HILL COUNTRY COMMUNITY CLINIC
CASE NUMBER: 25CV-0207783
Tentative Ruling on Demurrer to Fourth Amended Complaint: Defendant Hill County Community Clinic (HCCC) demurs to Plaintiff Christopher Marvin Blake Wardle's Third Amended Complaint. Specifically, Defendant asserts that the cause of action for: 1) Breach of Public Contract and Retaliation; 2) Breach of Contract and Fiduciary Duty Regarding Grant Management; 3) Breach of Fiduciary Trust (Public); 4) Breach of Implied Contract; 5) Breach of Covenant of Good Faith and Fair Dealing; (17) Breach of Mandatory Duty (Gov. Code 815.6) fail to state facts sufficient to constitute a cause of action pursuant to CCP § 430.10(e). Plaintiff opposes the demurrer.

Merits: A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). The Court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff's causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

On May 11, 2026, the Court sustained Defendant's Demurrer as to causes of action 1-5 of the Third Amended Complaint on the grounds that they failed to state sufficient facts to constitute a cause of action. Plaintiff filed a Fourth Amended Complaint ("4AC") alleging 18 causes of action. Defendant argues that Plaintiff lacks standing to assert causes of action 1-5 and 17, which all arise out of HCCC's administration of a grant from California Department of Public Health (CDPH).

Plaintiff is not a party to the grant contract. Plaintiff argues he has standing to enforce the contract as (1) an "Ex-Officio Overseer/Principal Interest" as a supervisor over HCCC's adherence to its charitable mandate; (2) a "Public Trust Heir Interest" allowing him to challenge mismanagement of charitable assets; (3) a "Patient/Consumer Interest" in HCCC's adherence to its public health mandate; (4) a "Statutory/Ministerial Duty Interest" under Government Code § 815.6 as a member of the medically underserved class; and (5) a "Whistleblower/Accountability Interest" under Labor

Code § 1102.5 based on having reported HCCC's alleged mismanagement.

First Cause of Action: Breach of Public Contract and Retaliation A breach of contract claim requires that the plaintiff plead (1) the existence of a contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) resulting damages. (CACI No. 303.) Where the claim is brought by a non-signatory, the plaintiff must additionally plead facts establishing standing to enforce the contract, either as a party or as an intended third-party beneficiary under Civil Code § 1559.

Plaintiff does not allege he was a party to the Grant Agreement between CDPH and HCCC; he alleges only that he was hired as a Peer Health Ambassador under the program the Grant Agreement funded. To enforce the contract as a non-signatory, Plaintiff must show he is an intended beneficiary under the three-factor test of *Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817: whether he would benefit from the contract, whether benefiting him was a motivating purpose of the contract, and whether enforcement by him is consistent with the contracting parties' objectives and reasonable expectations. The Grant Agreement forecloses this showing on its face, expressly disclaiming any intent to create third-party rights or remedies. *See Clemens v. Am. Warranty Corp.* (1987) 193 Cal.App.3d 444, 452 (court may look to the parties to a contract attached to the complaint in assessing sufficiency).

Plaintiff's opposition does not dispute that he is a non-signatory or that the disclaimer exists; it instead argues that an indemnification clause running to CDPH establishes HCCC's liability to him directly. An indemnity obligation owed to the grantor agency does not establish a right of enforcement in a non-signatory third party, and Plaintiff cites no authority extending indemnity language of this kind to create third-party beneficiary status. Because the standing defect arises from the express language of an exhibit attached to the pleading, no further factual allegation can cure it. The demurrer to the first cause of action is therefore **SUSTAINED** without leave to amend.

Second Cause of Action: Breach of Contract and Fiduciary Duty Regarding Grant Management This claim requires, in addition to the standard breach of contract elements above, that Plaintiff plead facts establishing a fiduciary relationship between himself and HCCC and a breach of the duties arising from that relationship.

As with the First Cause of Action, this claim is predicated on Plaintiff's enforcement of obligations arising under the Grant Agreement, to which he is not a party and under which he has no third-party rights. To the extent Plaintiff instead grounds this claim in HCCC's status as a nonprofit public benefit corporation holding grant funds in trust, enforcement of a charitable trust or a corporation's adherence to its charitable purpose is generally committed to the Attorney General. Gov. Code, § 12598(a). Leave to amend is denied because Plaintiff's relationship to HCCC as a former Peer Health Ambassador is not a fact subject to alteration by further pleading. The demurrer to the second cause of action is **SUSTAINED** without leave to amend.

Third Cause of Action: Breach of Fiduciary Trust A claim to enforce a public or charitable trust requires that the plaintiff plead either that the trust was created for their direct benefit or that they otherwise hold a recognized special interest sufficient to confer standing distinct from the general public's interest in proper administration of charitable assets.

Plaintiff's 4AC, and his opposition, characterize this claim as resting on the public's general interest in oversight of charitable and grant assets, an interest he labels his "Ex-Officio Overseer" or "Public Trust Heir" interest. This is the kind of public interest standing that California law reserves to the Attorney General absent a special interest such as a directorship or trusteeship. *See Martinez v. Socoma Companies, Inc.* (1974) 11 Cal.3d 394, 407 (members of the public generally lack standing to sue on a contract between a government agency and a private contractor). Plaintiff has not alleged, in four iterations of the complaint, that he holds any office, trusteeship, or directorship in HCCC that would take him outside the general public. Because this is a status Plaintiff either holds or does not, no further amendment could supply it. The demurrer to the third cause of action is **SUSTAINED** without leave to amend.

<u>Fourth Cause of Action: Breach of Implied Contract</u> An implied-in-fact contract requires the same elements as an express contract, mutual assent and consideration, manifested through conduct rather than words, along with a breach and resulting damages. (See CACI No. 302.)

Plaintiff does not allege a separate implied contract independent of the Grant Agreement and his at-will employment as a Peer Health Ambassador. His theory, that his position was implicitly guaranteed through the Grant Agreement's funding period of October 2022 through April 2024, is derivative of the same public contract to which he is not a party. The Grant Agreement does not obligate HCCC to continue operations through the full funding period, and no implied promise of continued employment through a date certain is otherwise pled. Plaintiff has had four opportunities to allege an independent basis for an implied contract without doing so. The demurrer to the fourth cause of action is **SUSTAINED** without leave to amend.

<u>Fifth Cause of Action: Breach of Covenant of Good Faith and Fair Dealing</u> A claim for breach of the implied covenant requires an underlying contract between the plaintiff and the defendant, and factual allegations that the defendant unfairly frustrated the plaintiff's right to receive the benefits of that contract. *See Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1394.

Because the covenant attaches only to a contract between the plaintiff and the defendant, and Plaintiff has no enforceable contractual relationship with HCCC arising from the Grant Agreement, this claim fails for the same reason as the First, Second, and Fourth Causes of Action. Plaintiff cannot use the implied covenant to create contractual rights broader than, or independent of, the underlying agreement to which he is not a party. The defect is the same standing defect addressed above and is not curable by amendment. The demurrer to the fifth cause of action is **SUSTAINED** without leave to amend.

<u>Seventeenth Cause of Action: Breach of Mandatory Duty (Gov. Code § 815.6)</u> Liability under Government Code § 815.6 requires that (1) a mandatory, non-discretionary duty be imposed on a public entity by an enactment, (2) the enactment be designed to protect against the kind of injury the plaintiff suffered, and (3) breach of that duty proximately caused the injury. *State Dept. of State Hospitals v. Superior Court* (2015) 61 Cal.4th 339, 348.

Plaintiff's 4AC does not plead a mandatory duty imposed on a public entity by an enactment. Pursuant to Gov. Code 811.2, a "public entity" includes the state, … , a county, city, district, public authority, public agency, and any other political subdivision or public corporation in the State. The 4AC alleges HCCC is a Non-Profit Public Benefit Corporation. (The Opposition also requests that the Court take judicial notice of the Articles of Incorporation of HCCC which state the organization is a 501(c)(3) nonprofit public benefit corporation.) Further, no statutory duty is identified. Instead, Plaintiff again pleads a form of breach of contract, alleging that HCCC failed to utilize funds as described in the Grant Agreement. The inapplicability of Gov. Code 815.6 to a nonprofit corporation cannot be cured by amendment. The demurrer to the seventeenth cause of action is **SUSTAINED** without leave to amend.

Defendant's Demurrer as to Causes of Action 1-5 and 17 of the Fourth Amended Complaint is **SUSTAINED** without leave to amend. No proposed order was lodged as required by Local Rule 5.17(D). Defendant shall prepare the order.

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9:00 a.m. Review Hearings

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CARTER VS. CUSTER, ET AL.
CASE NUMBER: 25CV-0208056
This matter is on calendar for trial setting. Both sides have filed status statements which request a 90-day continuance to attempt mediation. Today's hearing is continued to **Monday, November 2, 2026 at 9:00 a.m. in Department 64** for trial setting. No appearances are necessary on today's calendar.

HEARN VS. KONDYBE, ET AL.
CASE NUMBER: 25CV-0208638
This matter is on calendar for review regarding status of responsive pleading. Defendants filed their Answer on June 3, 2026. The matter is at issue. This matter is set for trial setting on **Monday, September 21, 2026 at 9:00 a.m. in Department 64.** Plaintiff is to give notice. No appearances are necessary on today's calendar.

LEWISTON COMMUNITY SERVICES DISTRICT VS. SUDA PROPERTIES, LLC, ET AL.
CASE NUMBER: 25CV-0208034
This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than December 8, 2026. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

LVNV FUNDING LLC VS. ROBBINS
CASE NUMBER: 24CVG-01953
This matter is on calendar for review regarding status of the case. Notice of Conditional Settlement was filed on February 2, 2026 indicating the matter would be dismissed no later than September 24, 2026. The matter is continued to **Monday, October 5, 2026 at 9:00 a.m. in Department 64** for status of dismissal. The Court intends to dismiss the matter without prejudice on October 5, 2026 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the hearing. No appearance is necessary on today's calendar.

MORGANFIELD VS. SILVERSTEIN, MD, ET AL.
CASE NUMBER: 25CV-0207462

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than October 6, 2026. Plaintiff has posted jury fees but Defendants have not. Defendants are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

MUNNERLYN, ET AL. VS. MARTIN, ET AL.
CASE NUMBER: 24CV-0205402

This matter is on calendar for review regarding status of Mr. Martin's request to set aside default. No motion has been filed. Additionally, the Court is in receipt of multiple JUD-100s and the procedural history is summarized below.

On September 30, 2025, Plaintiffs Timothy and Kellie Munnerlyn obtained entry of default on their complaint (filed July 1, 2024) against Defendant Jonathan Martin only.

On May 29, 2026, Plaintiffs submitted a proposed order for default judgment, using Judicial Council form JUD-100. In the proposed default judgment, Plaintiffs seek monetary damages in the amount of $41,253.85. The Court declined to execute the proposed judgment pending the outcome of the pending trial as to the other defendant Ms. Holley.

On June 23, 2026, Plaintiffs Timothy and Kellie Munnerlyn appeared for trial. Ms. Holley and Mr. Martin appeared. Mr. Martin indicated he had not been served and did not know he was in default. The Court continued his case until August 3, 2026 so he could attempt to set aside his default. No motion has been filed.

Upon further review of the file, it appears Mr. Martin was served the Summons and Complaint by Substitute Service on August 5, 2024 and was personally served a Statement of Damages on July 9, 2025.

The trial proceeded and Ms. Holley left the courtroom to contact her witnesses. She never returned and the trial proceeded in her absence. The Court found for the plaintiffs in the amount of $41,253.85 and ordered them to submit a judgment consistent with the outcome of the trial.

On June 29, 2026, the Plaintiffs Timothy and Kellie Munnerlyn filed a Judicial Council form JUD-100 as to Ms. Holley only.

The general rule is that there can be only one final judgment in an action. (*Bank of America v. Superior Court* (1942) 20 Cal.2d 697, 701.) The Munnerlyns are instructed to file one JUD-100 form as to both defendants. An appearance is necessary on today's calendar for the Munnerlyns to address the court and confirm they will file one JUD-100 form and for Mr. Martin to provide the Court a status update regarding his request to set aside default.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. $34,218.00 UNITED STATES CURRENCY
CASE NUMBER: 26CV-0209902

This asset forfeiture matter is on calendar for a status conference. The People filed a Petition for Forfeiture on February 5, 2026. No Claim Opposing Forfeiture has been filed. An appearance is necessary on today's calendar to provide a status of any related criminal matter.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. $24,515.00 UNITED STATES CURRENCY, $23,000.00 BARS OF SILVER (250-1OZ.) AND SILVER COINS (4 - 1OZ.) EST. VALUE
CASE NUMBER: 26CV-0209904

This asset forfeiture matter is on calendar for a status conference. The People filed a Petition for Forfeiture on February 13, 2026. No Claim Opposing Forfeiture has been filed. An appearance is necessary on today's calendar to provide a status of any related criminal matter.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. $89,462.00 UNITED STATES CURRENCY
CASE NUMBER: 26CV-0210138

This asset forfeiture matter is on calendar for review. The People filed a Petition for Forfeiture in Rem on March 12, 2026. No claim opposing forfeiture has been filed. An appearance is necessary on today's calendar to provide a status of any underlying criminal matter.

SOURCED ENERGY, LLC, ET AL. VS. THE APPLE PEDDLER RESTAURANTS, LLC, ET AL.
CASE NUMBER: 24CV-0205396

This matter is on calendar for review regarding status of the case. Notice of Entry of Amended Order Expunging Lis Pendens was filed May 27, 2026. At the last review hearing, Counsel indicated an intent to amend the cross complaint. A status statement has been filed requesting an additional 90 days to further investigate necessary information related to Counsel's intent to amend the cross complaint. The matter is continued to **Monday, October 5, 2026 at 9:00 a.m. in Department 64.** No appearances are necessary on today's calendar.